

Data Center Guide: What to Ask, and Who to Ask It

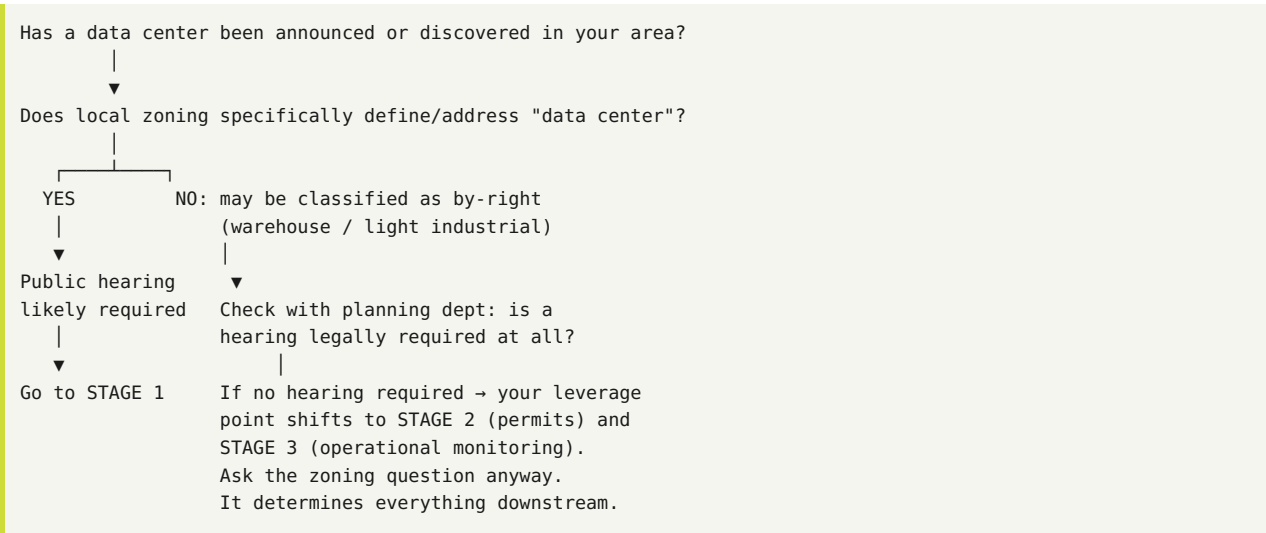
Last verified: August 9, 2026. Data center regulation moves fast. Several dockets and rules cited here were filed or changed within weeks of this date. Rules will change. Confirm any figure, docket number, or agency assignment directly with the agency. Do not treat this document as current without checking.

Regulatory structure and agency names vary by state. Where this guide references an agency type generically, like “state environmental agency,” the actual name differs by state. DEQ, DEP, DNR, and so on.

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1. Quick-start: which path am I on?



2. Hyperscale vs. standard facility: scale comparison

Not all data centers are the same size. Not all draw the same public concern. This determines which questions in this guide matter most for your specific project.

	Hyperscale (e.g., large AI-training campuses)	Standard/edge facility (most common type)
Typical footprint	Tens of thousands of sq ft, industrial-	About the size of a 3-story suburban

	scale, sometimes campus-sized	office building
Electricity draw	Can equal roughly 100,000 homes' worth of demand	Much less. Still draws enough to matter locally
Water use	Can exceed 50,000 people's daily use	Commonly a few hundred thousand gallons/day
Purpose	AI training/inference at large scale	Keeping data/processing closer to users, reducing streaming/video-call lag
Public opposition level	Draws the most organized opposition. Subject of most current PUC/PSC dockets	Often approved with little to no public awareness

(Figures reflect general ranges as commonly reported. Verify against the specific facility's own permit filings. Don't assume either category applies uniformly.)

3. Worked examples: Louisiana, Georgia, Virginia

Three states. Three versions of the same underlying fight. Included so a reader outside Louisiana can see the pattern generalizes, not just the one headline case.

Louisiana: Meta's Hyperion facility, Richland Parish

- Louisiana's PUC/PSC-equivalent is the **Louisiana Public Service Commission (LPSC)**, which regulates Entergy Louisiana's rates and infrastructure proposals. [S1]
- In December 2025, the LPSC created a fast-track "Lightning Initiative" review process. Infrastructure proposals tied to large loads like data centers can be approved in roughly 7-8 months instead of the standard 12, provided the customer, Meta, pays for at least half of the infrastructure cost. This is confirmed independently by three separate outlets. [S2][S3][S5]
- Entergy has filed Meta's expected power-load forecasts as **confidential "Highly Sensitive Protected Material."** Even the public version of Entergy's quarterly load filings excludes Meta's numbers. A sitting LPSC commissioner has publicly objected to this. [S4]
- Meta's Hyperion facility is projected to have a peak electricity load roughly **twice that of the entire city of New Orleans.** [S5]
- Meta says it is paying 100% of the cost of dedicated turbines built for its load. Consumer advocates dispute that this fully protects ratepayers. They cite stranded-cost risk if Meta doesn't renew its 30-year power contract, and a separate, unrelated Entergy project where ratepayers are covering 82% of a different \$1 billion infrastructure buildout. [S1][S6][S7]
- **On bill impact, two different figures exist. They are not equally reliable.** The Alliance for Affordable Energy, an advocacy group actively opposing the Hyperion project's current terms, states Entergy Louisiana bills were already up 11% since July 2024. [S6] That is a single, interested-party source. Treat it as advocacy framing, not verified fact. Independently, a report citing federal EIA data found Louisiana's average residential price per kilowatt-hour rose 14.1% from 2024 to 2025, more than double the 6.5% national average over the same period. [S38] That figure runs through federal data via a third party. It is the more reliable number of the two, though it measures statewide pricing generally, not a Hyperion-specific cost.
- A private docket-tracking site lists LPSC case numbers for this project: Meta Phase 1, U-37425. Expansion, U-37882. Related generation, U-37853. Large-load guideline docket, X-37921. **This is a secondary aggregator, not the LPSC itself. Verify any docket number directly on the LPSC's own filing portal before citing it.** [S8]

Georgia: statewide large-load cost investigation

- The Georgia Public Service Commission approved a \$285 million annual fuel-cost settlement for Georgia Power customers in May 2026. It simultaneously opened a standalone investigation into whether the largest Real-Time Pricing customers, primarily data centers, are driving up average fuel costs for all other customers. PSC staff estimated the effect at roughly 5-11% per month. The investigation is set to conclude before the end of 2026. It will directly shape cost allocation in Georgia Power's next base rate case. [S14]

- Separately, Coweta County, Georgia debated a local data center ordinance. Commissioners declined to require a decommissioning plan but agreed to require a bond as a rezoning condition. Protections vary county to county, even within one state. [S15]

Virginia: the state with the most data centers, and the first large-load tariff

- Virginia has the largest concentration of data centers of any state. Its State Corporation Commission approved a new large-load tariff for Dominion Energy in 2025, specifically to shift long-term cost-recovery risk from residential ratepayers to data centers and other large loads. [S13]

What this demonstrates: the same underlying question, who actually pays when a utility builds new infrastructure for a data center, is being litigated right now in at least three states. Three different mechanism names cover it: Lightning Initiative, large-load tariff, Real-Time Pricing investigation. Whatever your state calls it, ask the PUC/PSC directly whether an equivalent process exists.

4. Environmental justice review: what exists and what doesn't

This section exists because of the core problem this reporting describes. Communities, often Black communities, make decisions without basic information about what's being built next door. Environmental justice screening tools were built to address exactly that. The primary federal tool is currently gone.

- EPA's **EJScreen** mapped pollution burden against demographic data by census block. It flagged areas with high environmental burden and vulnerable populations. EPA removed it from its website in February 2025, as part of the administration's move to end EJ-related programs and close the Office of Environmental Justice and External Civil Rights. [S17][S18]
- A separate federal tool, the Climate and Economic Justice Screening Tool (CEJST), was also removed. Public interest groups sued over the EJScreen removal. A federal judge dismissed that suit for lack of standing in March 2026. Nothing indicates either tool is being restored. [S16][S19]
- **What still exists as a workaround:** the nonprofit Public Environmental Data Partners maintains an unofficial reconstruction of EJScreen, version 2.3, using the last available EPA data before removal. EPA does not maintain or update it. Describe it to readers as an archived snapshot, not a live tool. [S16]
- **What still exists as law, regardless of the federal tool's status:** New Jersey, Massachusetts, and Minnesota have their own state "cumulative impact" laws. These require certain permit applicants to conduct environmental justice analysis for communities already facing pollution from multiple sources. They operate independently of EPA and remain in force. [S18] Most states have no equivalent law.
- **Practical implication for this guide:** most states have no cumulative-impact law of their own. In those states, no standard, live, publicly accessible federal tool exists to check whether a proposed data center site sits in a historically overburdened area. The honest answer to "how do I find out" right now: use the archived EJScreen snapshot as a rough historical reference. Ask the state environmental agency directly whether the state has its own EJ mapping requirement. Treat the absence of an EJ finding as a gap to raise at the public hearing, not evidence that no disparate impact exists.

Question	Who to ask
Does this state have its own cumulative-impact or environmental justice law requiring analysis for this type of permit?	State environmental agency, or state legislature's environmental committee staff
Has any environmental justice or demographic burden analysis been done for this site, using any tool, state, archived federal, or otherwise?	State environmental agency, for permit-linked review. Developer directly, for anything voluntary
If no EJ analysis exists, is that because none is legally required here, or because it was skipped?	State environmental agency. This is a meaningful distinction to get on the record

5. Glossary

By-right. A zoning classification where a use is automatically permitted. No public hearing, no comment period, no discretionary vote. Often the reason communities say they had no advance notice.

Vested rights doctrine. The legal principle that a project is judged under the zoning rules in effect when the developer filed, even if the community changes the ordinance afterward. This can nullify a zoning fix passed too late.

Large-load tariff. A specific customer class and rate structure some state utility commissions are now creating for data centers and other high-demand users, distinct from an ordinary rate case. Typically requires minimum demand commitments and long-term contracts, shifting cost risk away from residential ratepayers. Louisiana's version is the "Lightning Initiative" fast-track process. Georgia is investigating cost allocation through its Real-Time Pricing structure. Virginia has an approved tariff for Dominion. The mechanism and the name both vary by state.

PILOT. Payment In Lieu Of Taxes. A deal where a company pays a reduced, negotiated amount instead of standard property tax, usually for a fixed number of years.

IRP. Integrated Resource Plan. A utility's public filing projecting future electricity demand and how it plans to meet it. Filed with the state PUC/PSC.

CBA. Community Benefit Agreement. A negotiated agreement between a developer and a community group. Can be a legally binding contract or a non-binding pledge. The difference matters and is often unclear on purpose.

PUC/PSC. Public Utility Commission or Public Service Commission. The state body that regulates utilities, approves rate increases, and oversees grid interconnection. Name varies by state. Louisiana calls it the LPSC.

Docket. A formal case file at the PUC/PSC or a court. Rate increases, interconnection disputes, and complaints become dockets. Usually searchable online.

PPA. Power Purchase Agreement. A contract where a company buys electricity, often framed as "renewable," from a specific generator. That generator may or may not be anywhere near the data center.

REC. Renewable Energy Certificate. A tradeable credit representing renewable generation elsewhere on the grid. Buying RECs does not mean the facility's actual electricity is renewable.

Standing (legal). The legal right to be a formal party in a case, such as a PUC docket or a zoning appeal, as opposed to submitting public comment. Standing usually requires demonstrating direct harm. It is narrower than "anyone can comment."

Decommissioning bond/surety. A financial guarantee, sometimes required by local ordinance, covering the cost of removing the facility and restoring the site if it's abandoned. Advocacy benchmark seen in practice: 110% of estimated removal cost, adjusted periodically for inflation and technology change. [S9]

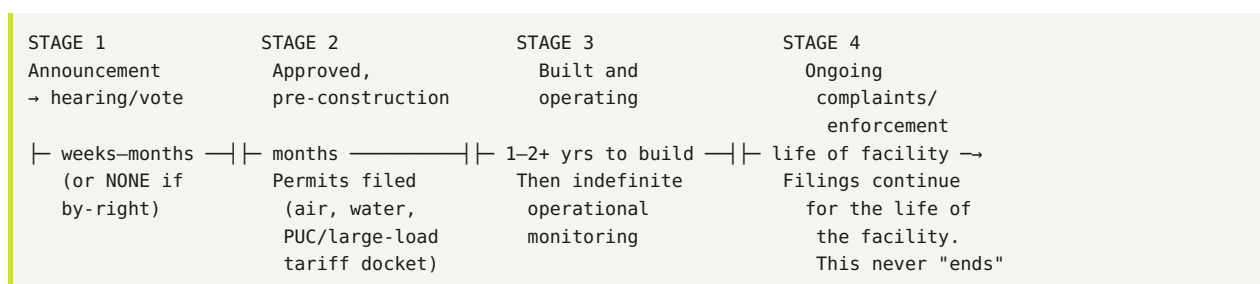
Operational abandonment. A defined trigger, where ordinances specify one, for when a decommissioning bond activates. Example: 12 consecutive months below a set percentage of projected utility load or committed staffing, verified by independent audit. [S10]

Eminent domain. Government's power to force the sale of private property for a project deemed to serve a public purpose, with compensation. Rare for data centers directly. More common for associated transmission lines.

Easement. A legal right to use part of someone else's land for a specific purpose, such as running a fiber line or power line, without owning it.

EJScreen / CEJST. Federal environmental justice mapping tools, both removed from public access in 2025. See Section 4.

6. Timeline overview



7. STAGE 1: Before Approval (announcement → public hearing/vote)

This is the only stage where a community has real leverage, before contracts are signed. **Ask the zoning question first.** It determines whether any hearing happens at all.

Question	Who to ask
Does the local zoning code specifically define and address “data center,” or would this project be classified under an existing by-right category (warehouse, light industrial)? If by-right, no hearing or public notice may be legally required.	County or municipal planning/zoning department
If the ordinance is being changed in response to this project, does a “vested rights” claim let the developer proceed under the old rules anyway, because they filed before the change?	County/city attorney
Is this a by-right/administrative approval, or does it require a public hearing and comment period?	County or municipal planning/zoning department
What is the parcel currently zoned for, and does the project need a variance or conditional use permit?	Same planning department. Zoning maps are public record
Does this state have its own cumulative-impact or environmental justice law, and has an EJ analysis been done for this site?	State environmental agency (see Section 4)
What tax incentives (property tax abatement, PILOT, sales tax exemption on equipment) is the company requesting?	State economic development agency, which grants incentives. County assessor, which administers property tax portion
How many permanent jobs is the company contractually committing to, at what wage, and is there a clawback clause if unmet?	State economic development agency. Request the draft incentive agreement
Is there a Non-Disclosure Agreement between the company and local government covering deal terms, including negotiated electricity rates?	County/city attorney or clerk
Does the local ordinance require a decommissioning bond or surety, and if so, what specific dollar benchmark and abandonment trigger does it use? Compare against the 110%-of-cost / 12-month-trigger benchmarks cited in the glossary.	Planning department. Check the ordinance text itself
Will this facility fall under a state large-load tariff or fast-track process (e.g., Louisiana’s Lightning Initiative, Georgia’s Real-Time Pricing structure, Virginia’s Dominion tariff), and what ratepayer-cost-share requirement does it carry?	State PUC/PSC. Ask specifically whether such a docket or process exists and whether this facility qualifies
Who pays for grid upgrades required to serve the facility: the company, or ratepayers via a future rate case or large-load tariff proceeding?	Same PUC/PSC
Is the utility’s load forecast for this specific facility filed as confidential/protected, and can that designation be challenged?	Same PUC/PSC. Ask the docket clerk about confidentiality rules and challenge procedures
What is the projected water source (municipal supply, private well, surface withdrawal) and projected daily volume?	State environmental agency’s water withdrawal permitting division, or local water utility
Is the cooling system evaporative (consumes water) or closed-loop/air-cooled (returns most of it)?	Ask the developer directly at the public hearing. Follow up via the environmental permit application once filed
Is a Community Benefit Agreement (CBA) being proposed, and would it be a legally binding contract or a non-binding pledge?	Developer directly. County/city attorney, for enforceability

Does the project require eminent domain or forced acquisition of any parcel, including for associated transmission lines?	County/city attorney or the state transmission-siting agency
Will new fiber or transmission easements cross other private property, and how are those landowners being compensated or notified?	Developer's right-of-way/land agent. County recorder's office
Is the "100% renewable" or "carbon neutral" claim based on a local Power Purchase Agreement (new generation tied to this facility) or on purchased Renewable Energy Credits (unrelated generation elsewhere)?	Developer directly. Request the specific PPA or REC contract
Are other data centers already approved, proposed, or under construction in the same utility service territory or watershed?	State PUC/PSC docket search. State environmental agency permit database. Search by region, not just this project
What prevailing wage or labor agreement, if any, covers the construction workforce? <i>(Unconfirmed as a universal process. Verify this is actually the correct venue in your state.)</i>	State department of labor, or the project's building/trades permit filing

Action at this stage: attend the public hearing, if one is required (confirm this first). Submit written comment. File a public records request for any draft agreements. Confirm separately whether you have legal standing to formally intervene (Section 11). See Section 12 for what this actually costs.

8. STAGE 2: After Approval (approved, pre-construction/permitting)

Question	Who to ask
What is the final, signed version of the tax incentive/PILOT agreement, and does it differ from what was presented at the hearing?	State economic development agency or county clerk
Has the utility filed for, or is this facility subject to, a large-load tariff or fast-track docket, and what minimum demand or cost-share terms does it include?	PUC/PSC docket search
What air permit has been filed for backup diesel generators, and what is the permitted annual runtime including testing?	State environmental agency's air permit database
What water withdrawal or discharge permit has been filed, and what are the daily/annual caps?	State environmental agency's water permit database
What is the construction timeline, and is there a bond or security in case the project is abandoned mid-build?	Planning department or economic development agency
Is there a designated community liaison or complaint contact at the company for the construction period?	Developer's public affairs office. Get this in writing
Is the decommissioning bond finalized, at what dollar amount, and against what abandonment trigger?	Planning department. Should be a condition of final approval
What prevailing wage or project labor agreement governs the construction workforce, and who enforces it? <i>(Unconfirmed venue. Verify locally.)</i>	State department of labor
Has an emergency services impact assessment been done for fire/EMS capacity given the facility's specific hazards (lithium battery systems, large-scale electrical infrastructure)? <i>(No confirmed standard process exists for this in most jurisdictions. Ask whether one has been done at all. Don't assume it's routine.)</i>	Local fire marshal or county emergency management office

Action at this stage: check the PUC/PSC docket and environmental permit databases quarterly. Filings often happen with minimal public notice.

9. STAGE 3: Once Built and Operating

Question	Who to ask
Is actual water usage tracking with what was permitted?	Local water utility, or state environmental agency's monitoring reports
Has a large-load tariff rate increase or cost-allocation proceeding been filed citing this facility or data centers generally?	PUC/PSC docket search. Georgia and Pennsylvania have active dockets specifically on data center cost allocation
Has the company met its contracted job-creation numbers?	State economic development agency. Many states publish annual compliance reports
How often have backup generators run, and were any runs outside permitted testing windows?	State environmental agency
Has the facility had any environmental violations, fines, or notices of noncompliance?	State environmental agency's enforcement/compliance database
Is noise level compliant with local ordinance?	County/city code enforcement
Does the facility's actual electricity source match the renewable claims made before approval, or is it running on grid mix backed only by RECs purchased elsewhere?	Compare the PPA/REC contract against the utility's published grid mix data
Have other data centers been approved or come online in the same region since this one, and what is the combined grid/water demand now?	Repeat the Stage 1 regional searches periodically. Cumulative impact isn't tracked by any single filing in most states
Has local fire/EMS responded to any incidents at the facility?	Local fire department or county emergency management office
Has the facility fallen below the operational-abandonment threshold defined in its decommissioning bond?	Planning department. Ask what verification schedule applies

10. STAGE 4: Where to Lodge Complaints

Type of complaint	Where it goes
Air quality / generator emissions violation	State environmental agency's enforcement division
Water withdrawal/discharge violation	Same state environmental agency, water enforcement division
Utility bill increases tied to grid costs or a large-load tariff	PUC/PSC consumer complaint division. Some states have active dockets specifically on data center cost allocation open to public comment
Zoning or noise violation	County/city code enforcement office
Company failed to deliver promised jobs/investment	State economic development agency. Ask about the clawback provision. Some states have an auditor/comptroller reviewing incentive compliance
Broken or unenforced Community Benefit Agreement	County/city attorney, if binding. If non-binding, this is public pressure/media leverage, not a legal remedy
Government withholding public records	State public records/FOIA appeal process. State Attorney General's office often handles disputes
Suspected illegal activity (fraud, bribery in approval process)	State Attorney General's office or county district attorney
Misleading renewable/carbon-neutral marketing claims	Federal Trade Commission. General deceptive-marketing jurisdiction. No confirmed FTC action specifically on data center claims as of this writing. Treat as a possible channel, not a proven one
Prevailing wage/labor agreement violations during construction	State department of labor's wage enforcement division

Facility abandoned with no decommissioning plan	Planning department first, check for a bond. Absent one, this becomes a code enforcement/nuisance issue
Cumulative regional impact not addressed by any single agency	No single body owns this in most states. Raise it in PUC large-load tariff docket comments and with the state legislature. This is a policy gap, not an existing enforcement channel
Utility hiding load-forecast data behind confidentiality rules	PUC/PSC docket clerk. Ask about the process to challenge a confidentiality designation. As seen in Louisiana, this is an active point of dispute, not settled practice
No environmental justice review was done and none is required by state law	This is currently a policy gap, not an enforcement channel, in most states. Raise it with the state legislature and at the public hearing. See Section 4

11. Standing: who can formally intervene vs. who can comment

Public comment. Anyone can submit written or spoken comment during a comment period. It becomes part of the record but does not make you a party to the case.

Formal intervention/standing. To be a legal party in a PUC docket, zoning appeal, or permit challenge, you typically must show direct and specific harm. Rules vary by state and forum.

Ask the PUC/PSC docket clerk or zoning board clerk what the deadline and process is to formally intervene, as opposed to submitting public comment.

12. What this actually costs: time, money, and access barriers

This guide can read as if every action listed is free and quick. It isn't. Pretending otherwise sets readers up to stall out.

Public records requests are a legal right in every state. Many states allow agencies to charge for staff time and copying on larger requests. A narrow, specific request, named documents, named date range, is both cheaper and faster than a broad one. Ask the agency for a fee estimate before they process the request. Ask whether a fee waiver is available for public-interest or journalistic requests. This varies by state and by agency discretion.

Formal intervention in a PUC docket, as opposed to public comment, is typically not something an individual does without legal help. Utilities and companies show up with attorneys. Cross-examining testimony or filing formal briefs generally requires one too. "Legal aid organizations sometimes handle this for community groups at no cost" is true in some places and not others. It depends entirely on local capacity, and this guide has not verified availability in any specific state. Ask a state or local legal aid organization directly whether they take utility/land-use cases before assuming they do.

Timelines listed in Section 6 assume someone is actively watching. Docket and permit filings do not come with a push notification. Monitoring this realistically requires a standing calendar reminder to check specific dockets, or a coalition where different people watch different filings. One person cannot reasonably track zoning, air permits, water permits, and PUC dockets alone on top of everything else in their life.

None of this is a substitute for organized numbers. A single resident's public comment carries less weight than an organized turnout at a hearing. This guide covers what to ask and where. It does not cover how to build a coalition. That omission is intentional. That's a different guide.

13. Templates

Public records request (adapt to your state's open records law and required language)

To: [Agency name, records custodian] Re: Public Records Request

Under [State] Public Records Act / Freedom of Information Act, I am requesting copies of the following records related to [facility name/developer name] at [address/parcel number]: 1. Any

signed tax incentive, abatement, or PILOT agreement, including exhibits. 2. Any correspondence between [Agency] and [Developer] regarding the project, dated [date range]. 3. Any environmental permit applications or approvals (air, water) associated with this facility. 4. Any Community Benefit Agreement or memorandum of understanding related to this project. 5. Any decommissioning bond, surety, or financial assurance filing associated with this project.

Please provide these in electronic format if available. If any portion of this request involves a fee, please provide an estimate before processing. If any portion of this request is denied, please cite the specific legal exemption relied upon for each withheld record, per [state open records law citation].

[Name, contact information, date]

PUC/PSC consumer complaint (adapt to your state commission's specific form/portal)

I am filing a complaint regarding [utility name]'s handling of costs associated with [data center facility name/developer], located at [address]. Specifically: [describe the issue]. I am requesting the Commission [open a formal investigation / respond to the following specific questions / provide the docket number under which this matter is being considered].

[Name, contact information, account number if applicable, date]

14. Further resources

fightatacenter.com. A structured organizing guide covering zoning traps, model ordinance language, and city-hall tactics.

Sierra Club model data center ordinance. A published model ordinance with side-by-side gap analysis against real township ordinances.

Public Environmental Data Partners. Maintains the unofficial archived reconstruction of EPA's EJScreen, version 2.3. The closest available substitute since EPA removed the live tool.

15. Notes and limitations

This guide describes the *type* of agency and process common across U.S. states. Exact agency names, complaint portals, and public notice requirements differ by state and sometimes by county home-rule status.

Large-load tariff/fast-track activity cited (Pennsylvania, Virginia, Georgia, Texas, Louisiana) reflects specific state proceedings as of the verification date above and will not apply uniformly elsewhere.

The 110% decommissioning bond figure and the 12-month/20% abandonment trigger are examples drawn from specific model ordinances and one city commission's recommendation, Austin's, not a national standard.

Items marked "unconfirmed" above (prevailing wage venue, emergency services assessment process, FTC enforcement on data center claims specifically, legal aid availability for PUC intervention) are plausible based on general regulatory structure but have not been verified as an actual, consistent process. Confirm locally before citing them as fact.

Cumulative regional impact review and environmental justice review are not standard existing enforcement functions in most states, following EPA's 2025 removal of EJScreen and CEJST. This is described in Section 4, not assumed.

The Louisiana docket numbers (U-37425, U-37882, U-37853, X-37921) come from a third-party aggregator site, not the LPSC directly. Verify on the LPSC's own portal before publishing them.

The Louisiana Lightning Initiative timeline is corroborated by three independent outlets, S2, S3, S5, and is treated as reasonably reliable. The 11% Louisiana bill-increase figure is single-sourced to an advocacy group with a direct stake in the outcome, S6, and is flagged as such. The independently-sourced 14.1% statewide figure, S38, is the more reliable number for that specific claim, though it measures something slightly different: statewide average price change, not a Hyperion-attributable cost.

16. Sources

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